

24STCV23931 24STCV23931

County: los-angeles

Division: Civil Law and Motion

Department: 510

Hearing date: 2026-07-29

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C510%2C07%2F29%2F2026

Source SHA-256: fa1dd0ac4012cdfabf820b82cc53f7dfe06701c0aab3450fa351a99e69eb631f

Case Number: 24STCV23931 Hearing Date: July 29, 2026 Dept: 510

Tentative

Ruling:

No.

8 – Felicity Trevino v. 600 S Spring Owner LLC, et al.

Defendant

SBDTLA 1, LLC's Motions to Compel Plaintiff's Responses to Form Interrogatories and Requests for Production

Defendant

SBDTLA 1, LLC moves for orders compelling Plaintiff Felicity Trevino to respond to form interrogatories and requests for production. Plaintiff did not file an opposition.

A

party must respond to written discovery "[w]ithin 30 days after service." (Code Civ. Proc., §§ 2030.260(a) [interrogatories], 2031.260(a) [requests for production].) When the responding party fails to serve a timely response to interrogatories or requests for production, the requesting party may move for an order compelling responses. (Code Civ. Proc., §§ 2030.290(b) [interrogatories], 2031.300(b) [requests for production].) Failing to serve a timely response results in waiving any objections. (Code Civ. Proc., §§ 2030.290(a) [interrogatories], 2031.300(a) [requests for production].)

Plaintiff failed to serve timely responses to

Defendant's discovery requests. Defendant served form interrogatories and

requests for production on Plaintiff on October 17, 2025. (Liston Decls., ¶ 2.) As of the date these motions were filed, Plaintiff had still not responded. (Id., ¶ 6.) Defendant is therefore entitled to an order compelling Plaintiff to respond to written discovery.

Sanctions

Defendant

also requests monetary sanctions against Plaintiff and her counsel. Code of Civil Procedure section 2031.300(c) provides, “[T]he court shall impose a monetary sanction ... against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to a demand for inspection, copying, testing, or sampling, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (See also Code Civ. Proc., § 2030.290(c) [interrogatories].) Plaintiff failed to provide any responses by the deadline. There is no evidence that Plaintiff acted with substantial justification.

The

Court finds sanctions are appropriate. Defendant did not, however, reasonably incur \$4,340 in expenses in preparing these two motions. (Liston Decls., ¶ 7.) These motions are almost identical to each other. The Court exercises its discretion to award counsel fees incurred for drafting one motion (7 hours at a \$310 rate.) The Court will also reduce the hours incurred by counsel by two hours, as it accounts for review of an opposition brief and preparation of a reply brief. Because no opposition brief was filed, no reply brief was necessary. 5 hours at a \$310 rate is \$1,550. Thus, Defendant reasonably incurred a total of \$1,550 in attorney fees.

Disposition

Defendant

SBDTLA 1, LLC’s motions to compel responses to form interrogatories and request for production are granted. Plaintiff Felicity Trevino is ordered to serve verified responses without objections within 21 days.

Plaintiff

Felicity Trevino and her counsel of record are ordered to pay Defendant SBDTLA

1, LLC \$1,550 in sanctions within 21 days.